**COMPLETE DEMAND PACKAGE AS SERVED — AUDITED, SIGNED 07/20/2026, SERVED 07/20/2026 · FILE COPY**


# LSH LAW GROUP

Personal Injury · 500 Commerce St, Suite 1200, Riverton · (555) 010-4000

Elijah Thorne, Attorney at Law
Matter LSH-2026-MVA-770412


July 20, 2026

**VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED** (No. 9589 0710 5270 0412 7731 58)
**AND VIA EMAIL** (dana.whitfield@keystonemutual.example)

Dana Whitfield, Bodily Injury Claims Adjuster
Keystone Mutual Insurance, Claims
P.O. Box 4100, Riverton

**Re: TIME-LIMITED SETTLEMENT DEMAND — BODILY INJURY**
Our client: John Doe
Your insured: Robert Smith
Date of loss: February 6, 2026
Policy no.: KMI-PA-7731045
Claim no.: KM-26-440871

Dear Ms. Whitfield:

As you know, this firm represents John Doe for the injuries he sustained on February 6, 2026, when your insured, Robert Smith, drove through the stop sign at Maple Hollow Road and Birch Avenue and struck the vehicle in which Mr. Doe was a passenger. Your declarations page, provided with your letter of March 20, 2026 (Exhibit J), confirms bodily injury limits of $10,000.00 per person. Mr. Doe's damages far exceed those limits. This letter is a time-limited offer to settle his bodily injury claim against Robert Smith for the $10,000.00 per-person limit, on the terms in section 6. The property damage claim (KM-26-440871-PD) is separate, is handled by your colleague Leah Moran, and is not part of this offer or of any release contemplated by it.

## 1. Liability

At about 7:10 a.m., Kevin Alvarez was driving his 2020 Ford Escape eastbound on Maple Hollow Road, with Mr. Doe belted in the front passenger seat. Mr. Alvarez came to a full stop at the all-way stop and proceeded. Mr. Smith, northbound on Birch Avenue in a 2017 Chevrolet Silverado, did not stop. He struck the Escape's front passenger door at about 28 mph and pushed it into a 2019 Honda Civic parked at the curb on Birch Avenue.

- Riverton PD Officer Thomas Garner (#2217) cited Mr. Smith for failure to stop at a stop sign (report **RPD-26-018842**, Exhibit A).
- An independent witness, Ruth Calloway of 2209 Maple Hollow Road, gave a signed statement at the scene: the SUV stopped fully and went; the pickup "didn't even slow down" (Exhibit B).
- Doorbell-camera video from 2214 Maple Hollow Road shows the Escape stopped at the line and the Silverado entering the intersection without stopping. Four stills, reprinted in color from the native file, and the video file are enclosed with its chain-of-custody log (Exhibit C).

Liability is not reasonably in dispute.

## 2. Injuries and treatment

Mr. Doe complained of neck stiffness to Riverton Fire EMS at the scene (Medic 7, run RF-26-0206-114: "restrained front-seat passenger, complains of neck stiffness, declined transport", Exhibit D). His symptoms worsened and spread into his right hand. He has been diagnosed with a cervical strain and a **C5-C6 right paracentral disc herniation with mild right foraminal narrowing**.

| Date(s) | Provider | Treatment and findings |
|---|---|---|
| 02/20/2026 | Riverton Urgent Care (Nina Patel, PA-C) | First treatment. History: "onset at MVA 02/06/2026, progressively worsening; numbness to right hand since 02/18." Cervical strain, rule out |

| | | |
|---|---|---|
| | | cervical radiculopathy; medication; referred to orthopedics and to chiropractic/PT. |
| 02/24/2026 – 06/05/2026 | Riverton Spine & Rehab (Dr. Mark Ellison, DC; Sara Lin, DPT) | Chiropractic care and physical therapy, 33 visits; discharged to a home program 06/05/2026. |
| 03/05/2026 | Lakeside Orthopedics (Dr. Alana Reyes, MD) | Right C6 dermatomal paresthesia; Spurling's test positive on the right. Cervical MRI ordered. |
| 03/13/2026 | Summit Imaging Center (Dr. Helen Park, MD) | Cervical MRI: C5-C6 right paracentral disc herniation with mild right foraminal narrowing; "no significant degenerative change at the adjacent levels." Corrected history addendum of 07/15/2026 enclosed. |
| 03/27/2026 | Lakeside Orthopedics | MRI reviewed; referred to pain management for an epidural steroid injection. |
| 05/15/2026 | Crescent Pain & Spine (Dr. Omar Haddad, MD) | Cervical epidural steroid injection under fluoroscopy. |
| 06/12/2026 | Lakeside Orthopedics | Maximum Medical Improvement. Residual intermittent right-arm paresthesia. Future care: possibly one to two repeat injections within 24 months. |

In April, Mr. Doe missed four therapy visits after Keystone ended his rental car on March 19, 2026 and his carpool ended on April 1, 2026. He returned on April 21, 2026, in evening appointments his mother could drive him to, and completed his course of care. The nineteen days are documented, with their cause and his return, in the Gap Explanation Record enclosed as Exhibit I. Mr. Doe's only prior treatment was three chiropractic visits in 2021 for low-back stiffness, which resolved (Exhibit E). He had no prior neck complaints or treatment.

### 3. The interval before first treatment

Mr. Doe first saw a provider on February 20, 2026, fourteen days after the collision. The record shows that his symptoms began at the scene and never stopped:

- He reported neck stiffness to the paramedics on the date of loss (Exhibit D).
- On February 7, 2026 he bought ibuprofen and lidocaine patches at Riverton Drug (receipt, Exhibit E).
- He called out of work at Northgate Distribution from February 9 through February 13, 2026, citing neck pain (Exhibit H), and texted his mother about his neck pain from February 7 through February 15.
- He had no way to get to a doctor: his Civic was towed from the scene, the Escape was in the shop, and no rental was authorized until February 18, 2026.
- Numbness reached his right hand on February 18, 2026. He went to urgent care on his first day off, February 20.

His treating orthopedist, Dr. Alana Reyes, has reviewed the records. Her letter of June 19, 2026 (Exhibit G) states, to a reasonable degree of medical probability, that the delayed presentation is clinically consistent with a disc injury whose radicular symptoms evolve over days to weeks, that the C5-C6 herniation was more likely than not caused by the February 6, 2026 collision, and that the 2021 low-back care is unrelated.

## 4. Special damages

| Provider / source | Date(s) of service | Description | Amount |
|---|---|---|---|
| Riverton Urgent Care | 02/20/2026 | Urgent care evaluation | $685.00 |
| Riverton Spine & Rehab | 02/24/2026–06/05/2026 | Chiropractic and physical therapy, 33 visits × $185.00 | $6,105.00 |
| Lakeside Orthopedics | 03/05, 03/27 & 06/12/2026 | Orthopedic consult and follow-ups, 3 × $640.00 | $1,920.00 |
| Summit Imaging Center | 03/13/2026 | Cervical MRI without contrast | $2,395.00 |
| Crescent Pain & Spine | 05/15/2026 | Cervical epidural steroid injection | $3,400.00 |
| Riverton Drug | 02/07/2026–06/12/2026 | Prescriptions and OTC medication | $312.40 |
| | | **Medical expenses** | **$14,817.40** |
| Northgate Distribution | 02/09/2026–05/18/2026 | Lost wages: 9 shifts × 8 h × $22.00/hour | $1,584.00 |
| | | **TOTAL SPECIAL DAMAGES** | **$16,401.40** |

**Future medical.** Dr. Reyes anticipates one to two repeat cervical epidural steroid injections within 24 months at $3,400.00 each, a future cost of $3,400.00 to $6,800.00. That figure is not included in the special damages above.

**General damages.** Mr. Doe is 34. For four months he lived with neck pain and numbness into his right hand, missed work in his first weeks at a new job, sat through 33 therapy visits and a spinal injection, and still has intermittent right-arm paresthesia. A jury would value this injury well above Mr. Smith's $10,000.00 limit.

## 5. Demand

Mr. Doe demands the **$10,000.00** per-person bodily injury limit of policy KMI-PA-7731045 in full settlement of his bodily injury claim against Robert Smith.

## 6. Terms of this offer

This offer will remain open for **30 days from Keystone Mutual's receipt of the certified mailing of this letter**. Acceptance must be in writing and must reach this office by email or mail by 5:00 p.m. on the thirtieth day. If it does not, the offer is withdrawn without further notice and will not be renewed. Acceptance requires all of the following:

1. Keystone's written agreement to pay the $10,000.00 per-person limit, with payment by check payable to "John Doe and LSH Law Group, IOLTA Trust Account" delivered to this office within 15 days of the written acceptance.
2. In exchange for payment, Mr. Doe will sign a **Limited Release of Robert Smith and Keystone Mutual Insurance only**, limited to his bodily injury claim arising from the collision of February 6, 2026, and expressly preserving every uninsured and underinsured motorist claim he holds, including against Harbor Point Insurance and Cardinal State Mutual, and his property damage claim. No release of "all other persons, firms, corporations or insurers" will be signed.
3. Mr. Smith's sworn affidavit that he held no other policy of insurance, and no other coverage available to him, applicable to this collision.
4. Mr. Doe will satisfy any valid liens for his medical treatment from the settlement proceeds.

Any counteroffer, or any acceptance that adds or changes a term, is a rejection of this offer. Please confirm receipt of this letter by email on the day it reaches you.

Very truly yours,

LSH LAW GROUP

Elijah Thorne

Elijah Thorne, Attorney at Law · signed 07/20/2026

# EXHIBIT INDEX AS SERVED

Enclosure set to the BI Time-Limited Demand of July 20, 2026 · 81 pages · Bates LSH-DEM-000001 through LSH-DEM-000081

| Ex. | Document | Date | Pp. | Bates | Cover letter section |
|---|---|---|---|---|---|
| A | Riverton PD Traffic Crash Report RPD-26-018842, certified copy | 02/06/2026 | 6 | LSH-DEM-000001–06 | 1 |
| B | Signed witness statement — Ruth Calloway | 02/06/2026 | 2 | LSH-DEM-000007–08 | 1 |
| C | Doorbell-camera stills (4), color, from the native file; preservation and chain-of-custody log; video file on USB | 02/06/2026 | 5 | LSH-DEM-000009–13 | 1 |
| D | Riverton Fire EMS Run Report RF-26-0206-114, certified | 02/06/2026 | 3 | LSH-DEM-000014–16 | 2, 3 |
| E | Medical records and bills, in treatment order: Riverton Urgent Care; Riverton Spine & Rehab Final Itemized Ledger, 33 visits, $6,105.00; Lakeside Orthopedics; Summit Imaging Center; Crescent Pain & Spine with Peach State's EOB and its corrected $0.00 patient statement; Riverton Drug receipts; 2021 Birch Avenue Chiropractic records (low back, resolved) | 02/20/2026–07/10/2026 | 44 | LSH-DEM-000017–60 | 2, 3, 4 |
| F | Summit Imaging Center cervical MRI report, Dr. Helen Park, with the corrected history addendum of 07/15/2026 (date of injury 02/06/2026) | 03/13/2026 | 4 | LSH-DEM-000061–64 | 2 |
| G | Dr. Alana Reyes — Causation Letter | 06/19/2026 | 2 | LSH-DEM-000065–66 | 2, 3 |
| H | Northgate Distribution wage-and-attendance letter, with the call-out record 02/09–02/13/2026 | 06/30/2026 | 3 | LSH-DEM-000067–69 | 3, 4 |
| I | Gap Explanation Record: the fourteen days to first care and the nineteen-day April disruption, each entry with its underlying record | 07/10/2026 | 6 | LSH-DEM-000070–75 | 2, 3 |
| J | Keystone Mutual declarations page and limits letter of 03/20/2026 | 03/20/2026 | 6 | LSH-DEM-000076–81 | Opening, 5 |
| | | **AS SERVED** | **81** | **LSH-DEM-000001–000081** | |

**Pulled from the draft set, and why.**

| Pulled | Reason |
|---|---|
| Master Case Summary (internal) | Attorney work product. It names our own gap risk and our valuation. It never goes to an adverse carrier, in a Demand Package, a Mediation Binder or an arbitration exhibit set. |
| Claim-specific HIPAA authorization | An authorization is how we get records, not something an adverse carrier is given. Mr. Doe's authorization runs to providers; Keystone receives the records we choose to enclose. |
| Civic repair estimate, teardown supplement and Diminished Value report | Property damage, claim KM-26-440871-PD, outside this bodily injury demand and outside the Limited Release. Enclosing it invites a release that reaches the Civic. |

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|---|---|
| Riverton Spine & Rehab 34-line ledger, $6,290.00 | Replaced by the Final Itemized Ledger: 05/04/2026 was billed twice; 33 visits × $185.00 = $6,105.00, matching the attendance log. |
| Crescent patient statement, $1,540.00 due from patient | Replaced by the corrected $0.00 statement. Crescent is in network and was paid at the contract rate; the $1,540.00 was a contractual adjustment it cannot bill to the member. |
| Grayscale doorbell stills | Replaced by color stills exported from the native file, hash unchanged, with the chain-of-custody log. |

**Service record.** Signed by Atty. Elijah Thorne 07/20/2026. Served the same day by certified mail, return receipt requested, No. 9589 0710 5270 0412 7731 58, and by email to dana.whitfield@keystonemutual.example at 4:21 p.m. Return receipt returned bearing 07/22/2026; the thirty-day acceptance window therefore closes **08/21/2026**, docketed with reminders at 14 and 7 days and on the day. Both channels, the receipt and the docketed date are logged on the file.

**Enclosures:** Exhibits A–J as indexed above. **cc:** John Doe (client), by mail.